

THE PENAL OFFENCES OF RAPE, PROSTITUTION AND ABORTION IN UGANDA

Uganda's legal framework surrounding the penal offences of rape, prostitution, and abortion is shaped by a combination of constitutional principles, statutory law, and socio-cultural dynamics. While the laws are entrenched in key documents such as the 1995 Constitution of Uganda and the Penal Code Act (Cap. 128), their implementation is often fraught with challenges, raising critical debates on their effectiveness, equity, and respect for human rights.

1. Rape

Rape in Uganda is criminalized under Section 110 of the Penal Code Act¹ (Cap. 128), which defines the offence as unlawful carnal knowledge of a woman or girl, without her consent or with consent obtained by force or intimidation. The law is premised on a narrow gender-specific definition that limits rape to male perpetrators and female victims, sidelining issues like male rape or same-sex sexual violence. Section 111 of the Act² prescribes life imprisonment for a conviction of rape.

Forensic medical evidence is admitted to case only through the police form 3 , which is filed out when a survivor files a case at the police station.

This form is issued only at police station and can only be filed in government approved medical personnel, located with DNA evidence collection capacity however there is a lack of such services in Uganda.

¹ Cap 128

² Penal Code Act Cap 128

There are one DNA testing facility in Kampala that serves the entire country and one police forensic laboratory in Naguru , Kampala.

Victims of sexual assault have in the past been able to obtain free clinical forensic services from Mulago Hospital . However funding is no longer available and any event this hospital only accessible to women within a radius of 20-30km.

MEDICATIONS

Plane B (emergency contraceptive , the morning pills is available in Uganda at most health centers and hospitals and select treatment should be taken with in 72 hours of the incident)

Ultrasound depending on the extent of injuries and type of trauma.(Available at all private hospitals and most health centers , especially health centers grade 3 & 4.

Hospitals can administer rape kit, Police station are intendent work with specialized medical professionals called Surgeons.

After carrying out the tests becomes evidence the victim can use against the perpetrator, the hospital is supposed to give the results information, in writing to survivors.

The 1995 Constitution, under Article 24³, guarantees human dignity and prohibits any form of inhuman or degrading treatment, which provides a broad foundation for protecting victims of sexual violence. Article 33⁴, which specifically addresses women's rights, guarantees women's protection from all forms of violence, including rape.

Despite the legal framework, a report indicates that rape is grossly underreported, with stigma and cultural norms around sexual violence contributing to this.⁵ Many victims fear societal retribution or shame, and some may even be forced to marry their rapists in certain communities, compounding the trauma. The law does not criminalize marital rape, reflecting patriarchal values that view women as subordinate to men within marriage.⁶ This omission contravenes Article 33⁷ of the Constitution, which guarantees women's rights to equal protection under the law. By failing to recognize marital rape, the law reinforces harmful gender norms that undermine women's autonomy and safety within marriage.

The enforcement of rape laws is often problematic. The Uganda Police Force's Annual Crime Report recorded over 1,500 cases of rape, but actual convictions

remain low due to corruption, inadequate forensic capabilities, and a lack of gender-sensitive training for law enforcement

³ 1995 Constitution of the Republic of Uganda

⁴ 1995 Constitution of the Republic of Uganda

⁵ **Knoema**, 'Uganda Rape Rate' (Knoema, 2014) <https://knoema.com/atlas/Uganda/Rape-rate> accessed 18 September 2024.

⁶ Patricia A P'Odong and Barbara L Can, 'Combating Marital Rape: The Law and the Criminal Justice System in Uganda' in Saida Hodzic and Barbara L Can (eds), *Violence Against Women and Criminal Justice in Africa: Volume II: Sexual Violence and Vulnerability* (Routledge 2022) 116-118

⁷ 1995 Constitution of the Republic of Uganda



officials.⁸ Additionally, the burden of proof in rape cases is high, often leading to acquittals based on lack of evidence rather than innocence. Uganda Vs Francis Okello.

In rape cases, the onus of proving rape lies squarely on the female victims and the legal process requires that the rape victim proves 'beyond reasonable doubt' and should further corroborate her evidence with either direct or circumstantial evidence. See Uganda Vs Kyabalango.

In rape case **UGANDA VS OTIM JAMES (2015-2018)**

The accused was indicated with the offence of rape contrary to section 123 and 124 of the penal code act, facts leading to the offence are:

That on 2nd of Feb 2014 at Oder Gweno village in Dakolo District, the accused has unlawful sexual intercourse with Adero Stella without her consent, The accused on arrangement pleaded not guilty, He sworn evidence and did not call any witnesses, He also raised a defence of alibi that on the alleged date of the accident, at 5:00pm, He went to Aganga market and returned home at about 7:00am, By 8:00pm he entered bed and slept together with all the children in the house, Further that there was a land grudge between him and victim's husband.

BURDEN OF PROOF

The burden of proof is always on the shoulder of the prosecution requiring them to prove as the ingredients beyond reasonable doubt.

ELEMENTS

- That there was unlawful sexual intercourse with the complainant
- That the complainant did not consent to that sexual intercourse.
- That it was the accused who had the unlawful sexual intercourse with the complainant.

The 1995 constitution, under Article 24, Guarantees human dignity and prohibits any form of inhuman or degrading treatment, which provide a broad foundation for protecting victims of sexual violence.

The 1995 constitution Article 33, which specifically addresses women's rights, guarantee women protection from all form of violence, including rape.

The penal code of Ethiopia under Sec.558 provides that ' whoever carries off a woman by violence or after having obtained her consent to abduction by intimidation or violence, tricking or deceit is punishable with vigorous imprisonment not exceeding three years'.

⁸ Uganda Police Force, *Annual Crime Report 2022* (Uganda Police Force, 2023) <https://www.upf.go.ug/download/the-2022-annual-crime-report> accessed 18 September 2024.



Furthermore, the law does not recognize marital rape as a criminal offence, undermining the rights of women within marriage.⁹ This legal gap is inconsistent with Uganda's constitutional commitment to protecting the dignity of women. The legal system's approach to rape disproportionately affects women, especially vulnerable women in poor and rural communities. The emphasis on "force" or "lack of consent" places the burden of proof on victims, making it difficult for them to secure justice. This is compounded by a male-dominated judiciary and law enforcement institutions that often lack gender sensitivity.

There is a need to expand the definition of rape to include all forms of non-consensual sex, irrespective of gender. Legal reforms should criminalize marital rape, and there should be increased funding for forensic services, victim support, and public education campaigns to reduce stigma.

2. Prostitution

A "Prostitute" is defined under **section 138 of the penal code act** as "a person who in public or elsewhere regularly or habitually holds himself or herself out as available for intercourse or other sexual gratification for monetary or other material gain and 'prostitution' shall be construed accordingly"

Prostitution, this is a type of sex work that involves engaging in sexual activity in exchange for payment.

Prostitution is criminalized under Sections 139 of the Penal Code Act¹⁰, which addresses the offence of living on the earnings of prostitution, keeping a brothel, or aiding or abetting prostitution. The penal provisions impose imprisonment of seven years for individuals involved in any aspect of the sex trade, from sex workers to those who facilitate the business. However, the law does not clearly distinguish between voluntary prostitution and sex trafficking, nor does it provide protection for sex workers against abuse.

Article 40¹¹ of the 1995 Constitution, guarantees the right to work under just and favorable conditions. While the Constitution does not explicitly mention sex work, there is an ongoing debate about whether criminalizing prostitution violates this constitutional guarantee.

CASE

SHAW VS DPP

Facts

⁹ Cecilia Mengo and others, 'Marital Rape and HIV Risk in Uganda: The Impact of Women's Empowerment Factors' (2019) 25(15) *Violence against Women* 1785

¹⁰ Cap 128

¹¹ 1995 Constitution of the Republic of Uganda



The defendant created magazines, which contained personal adverts for prostitutes; they included their personal contact details, photographs and descriptions of their services,

The solicitation of prostitution was now illegal by virtue of the street offences Act 1959, the defendant also received money from the prostitutes for the directory. Thus, he was living on the earning of prostitute; the defendant was convicted of conspiracy to corrupt public morals, as well as acting contrary to S. 30 of the Sexual offence Act 1959 & S.2 of the obscene publication Act 1959.

Issues.

The defendant appealed the conviction of conspiracy to corrupt public morals, arguing that this was not a charge recognized by the law of England.

This issue for the court was whether there was a charge of conspiracy to corrupt public morals and if court had the discretion to create such an offence.

DICISION /OUTCOME

The appeal was dismissed and the conviction was upheld, The court found the defendant decision to feature prostitute adverts in his magazines as dangerous to the welfare of the society and its was duty to protect the public majority's morals as well as safety and order.

TYPES OF PROSTITUTION

- Voluntary prostitution (Consent)
- Forced prostitution (Human trafficking)
- Child prostitution (under same adults who facilitates the prostitution)

DANGERS OF PROSTITUTION

- High risk of sexual behavior
- Sexually transmitted infection
- Drug use
- Violence amongst people

- Sexual history taking

CAUSES OF PROSTITUTION

- Family problem
- Peer pressure
- Sex trafficking



- Religious traditions
- Lack of knowledge about sex

PENALTY OF PROSTITUTION

Imprisonment for seven years.

The criminalization of prostitution disproportionately affects women, many of whom engage in sex work as a last resort due to poverty. By criminalizing their work, the law exposes sex workers to exploitation, abuse, and unsafe working conditions.¹² The Human Rights Awareness and Promotion Forum (HRAPF) has documented cases where sex workers were subjected to violence by law enforcement officers without legal recourse due to their criminalized status.¹³ Prostitution is highly stigmatized, and criminalizing it exacerbates the vulnerability of sex workers to violence and discrimination. Sex workers in Uganda had experience physical violence, with many incidents perpetrated by clients or the police.¹⁴ Women who engage in sex work are often denied access to justice, health services, and legal protections because of their criminalized status

More to the above, Criminalization also complicates efforts to address public health concerns. Uganda has made significant strides in combatting HIV/AIDS, but criminalizing prostitution undermines public health outreach. UNAIDS reports show that the HIV prevalence rate among female sex workers is significantly higher (31%) than the national average (5.8%) in Uganda, and criminalization prevents effective health interventions.¹⁵

Looking at international human rights standards: The CEDAW Committee has raised concerns about the treatment of sex workers in Uganda, urging the government to decriminalize consensual adult prostitution and focus on protecting sex workers' rights rather than punishing them.¹⁶

Uganda should consider decriminalizing consensual adult sex work and shifting the focus to protecting sex workers' rights and safety. This would align with international human rights recommendations and improve public health outcomes.

¹² Tugume Lubowa Hassan, 'Prostitution in Uganda: A Burden or a Service?' (2015)

4(2) *International Journal of Developing Societies* 62.

¹³ Human Rights Awareness and Promotion Forum (HRAPF), *Research Report on Laws Regulating Sex Work in Uganda* (HRAPF, 2022) <https://hrapf.org/hrapf-releases-research-report-on-laws-regulating-sex-work-in-uganda> accessed 18 September 2024.

¹⁴ Ether Sanyu, *Causes and Decision of Women's Involvement into Prostitution and its Consequences in Uganda: A Case Study of Central Division Masindi Municipal Council* (LLB Diss, Nkumba University 2018) 37-38.

¹⁵ UNAIDS, *Global AIDS Update 2024: Sex Workers* (UNAIDS 2024) https://www.unaids.org/sites/default/files/media_asset/2024-unaid-global-aids-update-sex-workers_en.pdf accessed 18 September 2024.

¹⁶ ECOI *Document* (ECOI 2023) <https://www.ecoi.net/en/file/local/2038232/N2035338.pdf> accessed 18 September 2024, 19.



3. Abortion

Definitions of abortion can vary and there is often controversy defining what abortion means. The definitions of abortion often reflect not just scientific knowledge, but social and political opinions.

Abortion, this is the deliberate termination of human pregnancy, most often performed during the first 28 weeks of pregnancy.

Section 131 of the penal code Act criminalizes abortion, prescribing a sentence up to 7 years in prison for anyone who unlawful procures a miscarriage.

The World Health Organization (WHO) defines abortion as pregnancy termination prior to 20 weeks' gestation. Generally, abortion is a term that refers to the termination of a pregnancy, whether it occurs with medical intervention such as medications or surgical procedures or whether it occurs on its own, such as a miscarriage.

The law only permits abortion under very limited circumstance, such as to save the life of mothers, a position consistent with Article 22(2) of the 1995 Republic of Uganda constitution as amended, which states that no one shall deprive another person's life except in execution of court sentence or save the life of another during childbirth.

There are mainly three schools of thought in regards to abortion;

- **Pro-life activists.**

These perceive abortion as murder of a helpless unborn child. They are opposed to legalising abortion arguing that the paramount right to life is vested in each human being from the moment of fertilization.

- **Pro-choice activists.**

These propose to viewing women as simply a maternal environment. They argue that a woman is totally free and has the right to decide independently if she wants a baby or not. That the foetus will not be considered a complete human being to own the rights of a person because it lacks the qualification for a person forexample it has no consciousness

- **Middle of the road activists approach.**

These argue on the basis of 'viability'(survive outside the mother's womb of the foetus). They are agreeable to abortion of the pre-viable foetus for example during the first tri- mester.



Similarly, Article 14 (2) (c) of the Maputo Protocol guarantees the rights of women and girls to access abortion for pregnancies following sexual assault, rape, and incest and where the continued pregnancy endangers the mental or physical health of the mother or the life of mother or the fetus.

The Guttmacher Institute estimates that 8% of maternal deaths in Uganda are due to unsafe abortions. This is particularly concerning given the high unmet need for contraceptives and comprehensive sexual health education.¹⁷

The law around abortion is ambiguous. While it is generally criminalized, there are instances, which allow for termination of pregnancy in cases of rape, incest, or severe fetal abnormalities. However, these exceptions are not reflected in the Penal Code, creating confusion among healthcare providers, law enforcement, and the public. This ambiguity has led to healthcare providers being reluctant to offer safe abortion services, even when permitted, for fear of prosecution.¹⁸

Restrictive abortion laws reflect and reinforce patriarchal control over women's bodies, limiting their autonomy and reproductive rights. Criminalizing abortion also stigmatizes women who seek to terminate pregnancies, often forcing them into unsafe and dangerous situations.

CAUSES OF ABORTION

- Advancing maternal age
- A woman's history of previous spontaneous abortion (This can be caused by accidental trauma, stress.
- A going on health condition like uncontrolled diabetes, smoking, alcohol, caffeine and illegal drugs.
- Cervical problem
- Under weight
- Heretic conditions e.g a unique chromosomes.
- Age, older than age 35 years than a younger person.

PREVENTION OF ABORTION.

-Get regular prenatal care.

-Stay away from miscarriage risks factors like smoking, alcohol drinking and illegal drug use.

-Taking daily multivitamins

¹⁷ Guttmacher Institute, *Unintended Pregnancy and Abortion in Uganda* (Guttmacher Institute 2024) <https://www.guttmacher.org/report/unintended-pregnancy-and-abortion-uganda> accessed 18 September 2024. ¹⁸ Guttmacher Institute, *Unintended Pregnancy and Abortion in Uganda* (Guttmacher Institute 2024) <https://www.guttmacher.org/report/unintended-pregnancy-and-abortion-uganda> accessed 18 September 2024.



- limit caffeine

- if you have had one or more prior miscarriages, ask your health care professional if you should take low dose aspirin.

COMPLICATIONS OF ABORTION.

- Fever high than 100.4 degree

- chills

- pain the lower stomach area

- Vaginal bleeding

- Discharge from the vagina

REASONS FOR ABORTION.

- Financial circumstances e.g. around 49% lack employment.

- Timing

- Partner related reasons (Almost 31% study respondent gave reasons relating to their partner.

- Inability to provide for baby.

CASE LAW

UGANDA VS CHARLES AWEKONIMUGU

Facts

- Took 16yrs a child to his home, had sexual intercourse with her frequently, one day her sister visited his home and reported to his father who reported to police, shortly there after the victim developed several abdominal complications, , let sign of abortion where tested positive.

PENALTY

The offence for which the accused was convicted is punishable by the maximum penalty of death as provided for under section 129(3) of the penal code Act.

- Or imprisonment for 13 and eleven month.



Conclusion

The penal offences of rape, prostitution, and abortion in Uganda are governed by a restrictive legal framework that often conflicts with constitutional guarantees of human rights and international standards. Rape laws need to be updated to recognize all forms of sexual violence and marital rape. The criminalization of prostitution exposes sex workers to abuse and undermines public health efforts, while Uganda's restrictive abortion laws contribute to unsafe abortion practices and high maternal mortality rates. Comprehensive legal reforms, coupled with public health and human rights approaches, are essential to addressing these issues and ensuring justice, safety, and dignity for all Ugandans.



BIBLIOGRAPHY

Law

The 1995 Constitution of the Republic of
Uganda Penal Code Act Cap 128

Books

Patricia A P'Odong and Barbara L Can, 'Combating Marital Rape: The Law and the Criminal Justice System in Uganda' in Saida Hodzic and Barbara L Can (eds), *Violence Against Women*



and Criminal Justice in Africa: Volume II: Sexual Violence and Vulnerability (Routledge 2022) 116-118

Journals

Tugume Lubowa Hassan, 'Prostitution in Uganda: A Burden or a Service?' (2015) 4(2) *International Journal of Developing Societies* 62.

Cecilia Mengo and others, 'Marital Rape and HIV Risk in Uganda: The Impact of Women's Empowerment Factors' (2019) 25(15) *Violence against Women* 1785

Websites

Knoema, 'Uganda Rape Rate' (Knoema, 2014) <https://knoema.com/atlas/Uganda/Rape-rate> accessed 18 September 2024.

Human Rights Awareness and Promotion Forum (HRAPF), *Research Report on Laws Regulating Sex Work in Uganda* (HRAPF, 2022) <https://hrapf.org/hrapf-releases-research-report-on-laws-regulating-sex-work-in-uganda> accessed 18 September 2024.

Uganda Police Force, *Annual Crime Report 2022* (Uganda Police Force, 2023) <https://www.upf.go.ug/download/the-2022-annual-crime-report> accessed 18 September 2024.

Ether Sanyu, *Causes and Decision of Women's Involvement into Prostitution and its Consequences in Uganda: A Case Study of Central Division Masindi Municipal Council* (LLB Diss, Nkumba University 2018) 37-38.

UNAIDS, *Global AIDS Update 2024: Sex Workers* (UNAIDS 2024) https://www.unaids.org/sites/default/files/media_asset/2024-unaid-global-aids-update-sex-workers_en.pdf accessed 18 September 2024.

ECOI Document (ECOI 2023) <https://www.ecoi.net/en/file/local/2038232/N2035338.pdf> accessed 18 September 2024, 19.

Guttmacher Institute, *Unintended Pregnancy and Abortion in Uganda* (Guttmacher Institute 2024) <https://www.guttmacher.org/report/unintended-pregnancy-and-abortion-uganda> accessed 18 September 2024.